

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CASWELL RODNEY

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. DARRIEN A. PHILLIPS SHEILD NO.
23806, P.O. SEAN COLLINS, SHEILD NO. 29210, P.O.
SERGEANT ANDERSON AND NYPD POLICE OFFICERS
JOHN/JANE DOES NUMBERS 1-10,

Defendants.
-----X

Index No.:

SUMMONS

Plaintiff designates
KINGS County
as the place of trial.

The basis of venue is:
Location of the Incident

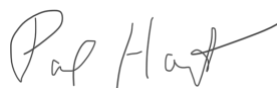
Plaintiff's residence:
501 Michael Street
Freehold, NJ 07728

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: NEW YORK, NEW YORK
September 16, 2024

Yours, etc.,



LAW OFFICE OF PAUL A. HAYT
Attorney For Plaintiff:
CASWELL RODNEY
225 Broadway
Suite 1000
New York, NY 10007
(212) 619-1290

TO: CITY OF NEW YORK
c/o Corporation Counsel
100 Church Street
New York, NY 10007

New York City Police Department
c/o Corporation Counsel
100 Church Street
New York, NY 10007

NYPD POLICE OFFICER Darrien A. Phillips, Shield No. 23806.
NYPD 75th Precinct; 1000 Sutter Avenue, Brooklyn, NY 11208
c/o Corporation Counsel
100 Church Street
New York, NY 10007

NYPD POLICE OFFICER Sean Collins, Shield No. 29210.
NYPD 75th Precinct; 1000 Sutter Avenue, Brooklyn, NY 11208
c/o Corporation Counsel
100 Church Street
New York, NY 10007

NYPD POLICE OFFICER Sgt. Anderson
NYPD 75th Precinct; 1000 Sutter Avenue, Brooklyn, NY 11208
c/o Corporation Counsel
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CASWELL RODNEY

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. DARRIEN A. PHILLIPS SHEILD
NO. 23806, P.O. SEAN COLLINS, SHEILD NO. 29210, P.O.
SERGEANT ANDERSON AND NYPD POLICE OFFICERS
JOHN/JANE DOES NUMBERS 1-10

Defendants.
-----X

Plaintiff, by his attorneys the LAW OFFICE OF PAUL A. HAYT, complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights and false arrest action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 12, 2023, at approximately 5:32 P.M., Plaintiff CASWELL RODNEY, while lawfully at or around 1419 Stanley Avenue, Brooklyn, New York, County of Kings, State of New York, was subject to an unlawful false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was subjected to mental and emotional injury as a result. Plaintiff was subjected to unlawful imprisonment at the NYPD 75th Precinct and Kings County Central Bookings before finally released after arraignment. Plaintiff's criminal case was dismissed and sealed on or around January 22, 2024. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully confined, falsely arrested,

falsely imprisoned, the Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff CASWELL RODNEY, is a resident of the State of New Jersey.

3. Defendant City of New York is a duly authorized municipal corporation.

4. Defendant New York City Police Department is an agency of the defendant City of New York.

5. Defendant NYPD Police Officer Darrien A. Phillips, Shield No. 23806, was at all times relevant herein an officer, employee, and agent of the New York City Police Department (a/k/a herein as “NYPD”).

6. Defendant NYPD Police Officer Darrien A. Phillips, Shield No. 23806, is being sued in his individual and official capacities.

7. Defendant NYPD Police Officer Darrien A. Phillips, Shield No. 23806, was at all times relevant herein assigned to the NYPD 75th Precinct.

8. Defendant NYPD Police Officer Sean Collins, Shield No. 29210, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

9. Defendant NYPD Police Officer Sean Collins, Shield No. 29210, is being sued in his individual and official capacities.

10. Defendant NYPD Police Officer Sean Collins, Shield No. 29210, was at all times relevant herein assigned to the NYPD 75th Precinct.

11. Defendant NYPD Police Officer Sgt. Anderson, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

12. Defendant NYPD Police Officer Sgt. Anderson, is being sued in his both his

individual and official capacities.

13. Defendant NYPD Police Officer Sgt. Anderson, was at all times relevant herein assigned to the NYPD 75th Precinct.

14. Defendants NYPD Police Officers John and Janes Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

15. Defendants NYPD Police Officers John and Janes Does Numbers One through Ten are being sued in their individual and official capacities.

16. At all times relevant herein, the individual defendants were acting under color of state law and in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On or about September 27, 2023, the Plaintiff purchased a three-family property located at the address known as 1419 Stanley Avenue, Brooklyn, New York 11208. On the morning of October 12, 2023, Plaintiff appeared the aforesaid location and installed a new entry door keylock on the building and then awaited the arrival of all the building's occupants to give them a copy of the key.

20. A few hours thereafter, the Plaintiff encountered a squatter-occupant, Eric Mansen, in front of 1419 Stanley Avenue, Brooklyn, NY 11208. Plaintiff attempted to hand over a key for the new entry lock to the squatter-occupant Eric Mansen, However, he refused to accept the key, kicked the building's front door and shouted to the Plaintiff that "... I would blow your fucking head off."

21. In response to the threat, Plaintiff immediately called 911 for emergency assistance. In the interim, Mr. Mansen gained entry into the building after another squatter-occupant opened the door from the inside the building and let Mr. Mansen in. Mr. Mansen then went up to a balcony on the building's second floor wherein he called 911 and falsely reported Plaintiff was in possession of a firearm and had brandished said firearm.

22. Soon thereafter, plain clothes police officers arrived on the scene as the Plaintiff, Plaintiff's father and Plaintiff's brother, who is a retired NYPD officer, all sat in the Plaintiff's vehicle which was parked in the vicinity of building.

23. Upon their arrival, the plain clothes officers asked plaintiff and all occupants of plaintiff's vehicle to exit it. The police officers then proceeded to conduct a pat-down searches of all occupants and also performed a thorough search of plaintiff's vehicle. After the search concluded, the plain clothes officers confirmed that no firearm was found. After said search, Plaintiff asked the plain clothes officers to inform the other patrol cars that subsequently arrived that no firearm was

found to negate any potential escalation of the police's interaction with plaintiff. The plain clothes officers obliged, as they walked over to an arriving patrol officers' vehicle to inform them of such and then left the scene.

24. Shortly thereafter, P.O. Darrien Phillips, shield no. 23806, began questioning Plaintiff about the nature of the situation at hand. Plaintiff informed P.O. Phillips that Plaintiff had in fact had called 911 for assistance due to the aggressive behavior displayed by squatter-occupant Eric Manson and that Plaintiff had taken a video of Eric Manson threatening to blow his head off.

25. P.O. Phillip's completely disregarded Plaintiff's complaint and the fact that Plaintiff possessed a video of Mr. Manson threatening him with deadly force. Instead, P.O. Phillip's focus was solely on whether the Plaintiff was in possession of a firearm. P.O. Phillips did not investigate any threats made by Mr. Manson against Plaintiff. P.O. Phillips did not inform Mr. Manson that the Plaintiff, as owner, had the legal right to change the locks to the entry door of the building as long as Plaintiff provided Mr. Manson with a copy of the key.

26. P.O. Phillips continued to question the Plaintiff about whether he has a license for a firearm, which the Plaintiff advised that he did when he lived in New York, but had since surrendered his New York firearm to the NYPD prior to moving to New Jersey. P.O. Phillips confirmed that the firearm was in fact surrendered and currently in the possession of the NYPD. P.O. Phillips asked the Plaintiff if he possessed a firearm in New Jersey and the Plaintiff advised that he does have a license for a firearm in New Jersey and that this firearm was locked away in a safe at his residence.

27. P.O. Phillips then spoke on the phone with someone and determined that it was somehow appropriate to place the Plaintiff under arrest for criminal possession of a firearm in the 4th degree, menacing in the 2nd degree and harassment in the 2nd degree. The Plaintiff was then arrested. Plaintiff was handcuffed, forced into the back of a patrol vehicle, and taken to the 75th Precinct for

processing. Several hours later, the Plaintiff was transported to Kings County Central Booking wherein the Plaintiff's mugshot and fingerprints were taken, he was arraigned, and thereafter, released on his own recognizance. An order of protection was issued by the court preventing the Plaintiff from entering his property and prohibiting any interaction between the Plaintiff and the squatter-occupant Eric Mansen. As a result of said false arrest and unlawful imprisonment, Plaintiff's Department of Homeland Security Global Entry access was revoked, which led to the Plaintiff's subsequent detainment by U.S. Customs agents upon his re-entry into the United States from a trip abroad.

28. At no time was Plaintiff not cooperative with police officers at the scene or otherwise resist arrest.

29. Nevertheless, Plaintiff was unlawfully arrested by defendant officers, restrained with metal handcuffs, placed in the back of an NYPD vehicle, and transported to an NYPD Precinct Police Station against his will; upon information and belief, the 75th Precinct.

30. Upon information and belief, during his time in custody, defendant police officers falsely communicated, or had communicated on their behalf, allegations that Plaintiff had committed a crime to the Kings County District Attorney's Office, to wit: Criminal Possession of a Firearm; Menacing; and Harassment.

31. On October 13, 2023, the Plaintiff was arraigned in Criminal Court and charged with crimes he did not commit.

32. The case was never indicted by the Kings County District Attorney's Office because no crime was committed by Plaintiff.

33. The false criminal charges made against the Plaintiff were dismissed and sealed in their entirety on or around January 22, 2024.

34. Some of the defendant officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their

fellow officers from falsely arresting, imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

35. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

36. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

37. The unlawful approach, pursuit, stop, and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

38. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

39. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

SECOND CAUSE OF ACTION

40. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

41. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under

the Fourteenth Amendment to the Constitution of the United States.

42. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

43. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

47. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

48. The use of excessive force by defendants by, amongst other things, seizing and tightly handcuffing him, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION

49. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

50. The defendants that did not physically touch Plaintiff, but were present when other officers knowingly violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

51. Defendants failed to intervene to prevent the unlawful conduct described herein.

52. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

53. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

54. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

55. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

57. Defendants issued false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

58. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

59. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

60. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION

61. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

62. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution

63. Defendants commenced and continued a criminal proceeding against Plaintiff.

64. There was actual malice and an absence of probable cause for the criminal proceedings against Plaintiff and for each of the charges for which he was prosecuted.

65. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

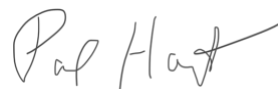
PRIOR PROCEEDINGS

66. Plaintiff duly filed a Notice of Claim concerning the aforesaid matter on January 3, 2024.

67. A 50h hearing was held on February 13, 2024 concerning the aforesaid claim.

68. Defendants have not sought to resolve Plaintiff's claim at any time since Plaintiff's filing of his Notice of Claim.

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.



LAW OFFICE OF PAUL A. HAYT

Attorney For Plaintiff:

CASWELL RODNEY

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Suite 1000

New York, NY 10007

(212) 619-1290